

Senate File 2402

S-5229

1 Amend Senate File 2402 as follows:

2 1. Page 36, after line 25 by inserting:

3 <DIVISION ____

4 LANDHOLDINGS

5 Sec. _____. Section 9I.7, unnumbered paragraph 1, Code 2026,
6 is amended to read as follows:

7 A nonresident alien, foreign business, or foreign
8 government, or an agent, trustee, or fiduciary thereof, which
9 owns an interest in agricultural land within this state on or
10 after January 1, 1980, shall register the agricultural land
11 with the secretary of state. The registration shall be made
12 within sixty days after January 1, 1980, or within sixty days
13 after acquiring the land or the interest in land, whichever is
14 later. The registration shall be made online or in the form
15 and manner prescribed by the secretary of state. ~~Information~~
16 ~~described in this section is a confidential record and subject~~
17 ~~to use in the same manner as provided in section 10B.5.~~ As part
18 of the registration, the nonresident alien, foreign business,
19 or foreign government, or an agent, trustee, or fiduciary
20 thereof, shall file all of the following information:

21 Sec. _____. Section 10B.1, Code 2026, is amended by adding the
22 following new subsections:

23 NEW SUBSECTION. 1A. a. "*Business entity*" means a person,
24 formed under the statutes of this state or another jurisdiction
25 for purposes of engaging in a commercial activity on a profit,
26 cooperative, or not-for-profit basis, including but not
27 limited to a corporation or entity taxed as a corporation
28 under the Internal Revenue Code, nonprofit corporation,
29 cooperative or cooperative association, partnership, limited
30 partnership, limited liability company, limited liability
31 partnership, investment company, joint stock company, joint
32 stock association, or trust, including but not limited to a
33 business trust.

34 b. "*Business entity*" does not include a family farm
35 corporation, family farm limited liability company, family

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1 trust, revocable trust, testamentary trust, or family farm
2 unincorporated nonprofit association, each as defined in
3 section 9H.1.

4 NEW SUBSECTION. 10A. "*Out-of-state business entity*" means
5 a business entity formed under the statutes of any of the
6 following:

7 a. A state of the United States, other than Iowa.

8 b. A territory of the United States.

9 NEW SUBSECTION. 10B. "*Out-of-state individual*" means an
10 individual who is domiciled in any of the following:

11 a. A state of the United States, other than Iowa.

12 b. A territory of the United States.

13 Sec. _____. Section 10B.1, subsection 11, Code 2026, is
14 amended by adding the following new paragraphs:

15 NEW PARAGRAPH. *Of.* An out-of-state business entity holding
16 an interest in agricultural land in this state, including a
17 general partnership in which a partner is domiciled in another
18 state, or territory, of the United States.

19 NEW PARAGRAPH. *Of.* An out-of-state individual holding an
20 interest in agricultural land in this state.

21 Sec. _____. Section 10B.3, Code 2026, is amended by adding the
22 following new subsection:

23 NEW SUBSECTION. 5A. A person not described in this section
24 who is an authorized representative of an out-of-state business
25 entity or an out-of-state individual.

26 Sec. _____. Section 10B.4, subsection 2, Code 2026, is amended
27 by adding the following new paragraph:

28 NEW PARAGRAPH. *Ob.* If the reporting entity is a general
29 partnership, the name of and address of each partner who
30 resides in another state, or territory, of the United States.

31 Sec. _____. Section 10B.5, subsection 2, Code 2026, is amended
32 to read as follows:

33 2. a. Information Except as provided in reports paragraph
34 "b" and section 10B.5A, a report required in to be filed under
35 this chapter is a confidential record as provided in section

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(amending this SF 2402 to CONFORM to HF 2678)

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1 22.7. The attorney general may have access to the reports, and
2 may use information in the reports in any action to enforce
3 state law, including but not limited to [chapters 9H](#) and [9I](#).
4 The reports shall be made available to members of the general
5 assembly and appropriate committees of the general assembly
6 in order to determine the extent that agricultural land is
7 held in this state by corporations and other business and
8 foreign entities and the effect of such land ownership upon the
9 economy of this state. The secretary of state shall assist any
10 committee of the general assembly studying these issues.

11 b. A report filed under this chapter is not a confidential
12 record if the reporting entity is any of the following:

13 (1) A foreign business, foreign government, or nonresident
14 alien.

15 (2) An out-of-state business entity or an out-of-state
16 individual.

17 Sec. _____. Section 10B.5A, Code 2026, is amended to read as
18 follows:

19 **10B.5A Annual summary to governor and general assembly.**

20 1. The secretary of state shall prepare an annual summary of
21 foreign and out-of-state agricultural landholding.

22 2. a. The summary must ~~be~~ include a report summarizing
23 the compiled information for agricultural landholdings by
24 foreign businesses, foreign governments, and nonresident aliens
25 included in the current registrations filed pursuant to section
26 9I.7 and the last reports filed pursuant to [section 10B.4](#).

27 b. The summary must include a report summarizing the
28 compiled information for agricultural landholding by
29 out-of-state business entities and out-of-state individuals
30 included in the last reports filed pursuant to section 10B.4.

31 3. The information described in subsection 2, is not a
32 confidential record as provided in [section 22.7](#). The attorney
33 general may have access to the annual summary and may use
34 information in the annual summary in any action to enforce
35 state law, including but not limited to [chapters 9H](#) and [9I](#), and

1 this chapter. The annual summary shall be made available to
2 the governor, members of the general assembly, and appropriate
3 committees of the general assembly in order to determine the
4 extent that agricultural land is held in this state by foreign
5 entities and the effect of such land ownership upon the economy
6 of this state. Upon request, the secretary of state shall
7 assist any committee of the general assembly studying these
8 issues.>

9 2. Title page, by striking lines 1 through 5 and inserting
10 <An Act providing for certain persons acting under the
11 jurisdiction of the secretary of state, including by providing
12 for information from required filings, and the administrative
13 dissolution of certain entities, and making penalties
14 applicable.>

15 3. By renumbering as necessary.

CHERIELYNN WESTRICH